

**IN THE COURT OF APPEALS OF
THE STATE OF WASHINGTON**

DIVISION ONE

ZACKARIAH BENNETT,
Appellant,
vs.
MELVINA MANNING,
Respondent.

Case No.: 87007-6

FINAL APPELLATE BRIEF

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I. INTRODUCTION

Appellant, Zackariah Bennett, appeals the Superior Court's denial of his Motion for Reconsideration and the granting of Summary Judgment in favor of Respondent, Melvina Manning.

This appeal centers on:

1. The misapplication of res judicata and collateral estoppel, based on demonstrable misrepresentations regarding the scope and outcome of prior proceedings;
2. Procedural irregularities that violated Appellant's right to due process, including the court's failure to consider critical filings;
3. A pattern of procedural misconduct by Respondent's counsel, Ms. Gass, which reflects a broader effort to disadvantage Appellant and obscure the merits of his claims; and
4. The trial court's failure to address allegations of custodial interference, tortious interference with parental rights, and fraud arising from Respondent's actions in withholding Appellant's son, T.B., in 2008.

These errors, taken individually and collectively, necessitate reversal of the Superior Court's rulings and remand for a fair hearing.

II. STATEMENT OF JURISDICTION

The Court of Appeals has jurisdiction over this matter under RAP 2.2(a)(1), as Appellant seeks review of a final judgment entered by the Superior Court for King County. The Notice of Appeal was timely filed pursuant to RAP 5.2(a).

III. LEGAL STANDARDS

A. Under Review

Summary Judgment (CR 56(c)):

Summary judgment is only appropriate when there are no genuine issues of material fact, and the moving party is entitled to judgment as a matter of law. The court must view all evidence in the light most favorable to the non-moving party. (*Vallandigham v. Clover Park Sch. Dist. No. 400*, 154 Wn.2d 16, 26, 109 P.3d 805 (2005)).

The standard of review is de novo.

Res Judicata:

Prevents relitigation of a cause of action that has been fully adjudicated by a competent court. (*Roberson v. Perez*, 156 Wn.2d 33, 43 (2005)).

The standard of review is de novo.

Collateral Estoppel:

Precludes relitigation of specific issues actually litigated and essential to the outcome of the first action. (*Hanson v. City of Snohomish*, 121 Wn.2d 552, 562 (1993)).

The standard of review is de novo.

Procedural Due Process:

Parties must be afforded notice and an opportunity to respond before the court issues a dispositive ruling. Failure to serve a proposed order or allow for objections violates procedural due process. (*Mathews v. Eldridge*, 424 U.S. 319, 333 (1976)).

The standard of review is abuse of discretion.

B. By Reference

Tortious Interference with Parental Rights:

The common law recognizes a cause of action for tortious interference with parental rights, requiring: (1) the right to maintain a parental relationship, (2) intentional interference by a third party, (3) resulting harm, and (4) damages. (*Wyatt v. McDermott*, 283 Va. 685, 725 S.E.2d 555 (2012); *Strode v. Gleason*, 510 P.2d 250 (Wash. Ct. App. 1973)).

Custodial Interference (RCW 9A.40.060):

Custodial interference occurs when a person intentionally retains or detains a child with the intent to deny access to a lawful custodian. (*State v. Veliz*, 176 Wn.2d 849, 297 P.3d 416 (2013)).

Fraud:

Fraud claims require a false representation of material fact, intent to deceive, reliance, and resulting harm. (*Stiley v. Block*, 130 Wn.2d 486, 925 P.2d 194 (1996)).

IV. STATEMENT OF THE CASE

Overview of Dispute:

This case arises from the Respondent's intentional interference with the Appellant's custodial and parental rights. In 2008, Respondent refused to return the Appellant's son, T.B., following an agreed-upon temporary visitation in Washington State. Despite repeated demands for T.B.'s return, Respondent falsely alleged abandonment and abuse to obtain custody through a series of procedural manipulations. These actions culminated in a default custody order and a no-visitation

stipulation against Appellant without any investigation into the truth of Respondent's claims.

Prior Proceedings:

In 2022, Appellant filed a Domestic Violence Protection Order (DVPO) petition against Respondent in King County Superior Court (Cause No. 22-2-09380-3). The DVPO court explicitly limited its scope to determining whether a protection order should be granted, stating: *"Anything that is beyond the scope of why we're here is not going to be something that I want you to focus on in your testimony."*¹

Appellant informed the court on record that broader claims against Respondent had been filed as a separate civil matter² (Cause No. 23-2-11352-7), which is now before this court for review. However, during summary judgment proceedings in the civil case, Respondent's counsel falsely asserted that these broader claims had already been adjudicated in the DVPO matter.

¹ 84450-4-1 VRP at pg-36, ln-5 (exhibit-A) (KCSC Cause No. 22-2-09380-3)

² Id at pg-36, ln-12

Procedural Irregularities:

Respondent's proposed summary judgment order was emailed directly to the court's bailiff without being served on Appellant, depriving him of the opportunity to review or contest it. Additionally, the Superior Court failed to consider Appellant's Motion to Correct Misrepresentation, which identified critical factual disputes regarding the scope and outcome of the DVPO proceedings.

Misconduct by Respondent's Counsel:

Throughout the proceedings, Respondent's counsel engaged in procedural tactics designed to obscure the merits of Appellant's claims. These included delaying the filing of appearances to gain a strategic advantage and presenting false representations to the court regarding prior adjudications.

V. ISSUES PRESENTED FOR REVIEW

1. Did the Superior Court err in granting summary judgment by misapplying res judicata and collateral estoppel based on demonstrably false representations by Respondent's counsel?
 2. Did the Superior Court violate Appellant's procedural due process rights by failing to serve Respondent's proposed summary judgment order and disregarding Appellant's Motion to Correct Misrepresentation?
 3. Did the Superior Court err in failing to address Appellant's claims of custodial interference and tortious interference with parental rights despite genuine issues of material fact?
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VI. SUMMARY OF ARGUMENT

The trial court's dismissal of Appellant's claims reflects a series of procedural and substantive errors that necessitate reversal. Respondent's counsel misrepresented the scope and outcome of prior DVPO proceedings³, leading to the improper application of res judicata and collateral estoppel. The court compounded this error by adopting Respondent's proposed summary judgment order without providing Appellant the opportunity to review or respond, thereby violating procedural due process. Finally, the trial court failed to address genuine issues of material fact regarding custodial interference, tortious interference with parental rights, and fraud. These errors, both individually and collectively, demand reversal and remand for further proceedings.

VII. ARGUMENT

A. Misapplication of Res Judicata and Collateral Estoppel

Limitation of Prior Proceedings:

The DVPO hearing explicitly limited its scope to determining whether a protection order was warranted.⁴ Broader issues raised by Appellant were excluded from consideration and refiled as a separate matter. As such, the claims in the current case could not have been litigated or resolved in the prior DVPO proceedings.

³ Summary Judgement Hearing 06/28/2024 at 01:41:21p.m.

⁴ 84450-4-1 VRP at pg-35, ln-22

Misrepresentation by Respondent's Counsel:

Despite knowing that the DVPO court did not address Appellant's broader claims, Ms. Gass falsely asserted that these issues were already adjudicated⁵, and mischaracterized this matter as stemming from the DVPO instead of the (now) 17yrs of unjustified cruelty the Appellant was subjected to by Mrs. Manning.

The Appellant objected to this mischaracterization; the court overruled.⁶ Appellant specifically addressed this, and clarified that the basis of his claims preceeded the DVPO.⁷⁸

Ms. Gass misled the Superior Court into improperly applying res judicata and collateral estoppel, warranting reversal of the summary judgment.⁹

B. Procedural Concerns and Lack of Due Process

Failure to Serve Proposed Order:

⁵ SJ Hearing 06/28/24 at 01:44:35p.m.

⁶ SJ Hearing 06/28/24 at 02:10:08p.m. and 02:10:46p.m.

⁷ SJ Hearing 06/28/24 at 02:11:20p.m.

⁸ Appellant asserts the opposite, that the DVPO was in response to his request of paperwork from Mrs. Manning, and is part of claim #5 (Abuse of Process) in this cause.

⁹ SJ Hearing 06/28/24 at 01:44:13 - 01:45:38p.m.

Respondent's counsel emailed the proposed summary judgment order directly to the court without serving it on Appellant. This procedural violation deprived Appellant of his right to review or contest the order, undermining transparency and fairness.¹⁰

Ignored Motion to Correct Misrepresentation:

Appellant's motion raised material factual disputes regarding the scope and outcome of the DVPO proceedings. The Superior Court's failure to consider this motion violates precedent requiring courts to review all filings submitted before a final ruling (*Felsman v. Kessler*, 2 Wn. App. 493 (1970)).

C. Failure to Address Custodial and Tortious Interference Claims

Custodial Interference:

Appellant's allegations align with RCW 9A.40.060's elements of custodial interference, including Respondent's intentional retention of T.B. and use of false allegations to deny Appellant access. These claims create genuine issues of material fact, making summary judgment inappropriate.

¹⁰ Summary Judgement hearing 06/28/24 at 02:14:11 - 02:14:26p.m.

Tortious Interference with Parental Rights:

Under Wyatt v. McDermott and Strode v. Gleason, Appellant's allegations establish a valid cause of action. Respondent's intentional actions disrupted Appellant's parental relationship, causing significant harm and damages. The trial court's dismissal of these claims without substantive consideration warrants reversal.

VIII. REQUEST FOR RELIEF

For the reasons stated, Appellant respectfully requests that the Court of Appeals:

REVERSE the Order Granting Summary Judgment:

Reconsider the decision in light of the procedural fairness issues and misrepresentations identified.

REMAND the Case to the Superior Court:

Provide a full and fair hearing on the merits of Appellant's claims, ensuring transparency and procedural integrity in future proceedings.

IX. CONCLUSION

The procedural and substantive errors in this case have denied Appellant a fair opportunity to present his claims. Appellant respectfully urges this Court to reverse the summary judgment ruling and remand for a fair hearing.

DATED this 21st day of January, 2025.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', with a stylized flourish at the end.

Appellant Pro Se

Words: 1800